Montana AI Guidelines: Data and Student Privacy Passages

Excerpted verbatim from *Montana Artificial Intelligence in K–12 Education Guidelines, Version 2.0 (Montana Office of Public Instruction with the Frontier Learning Lab at the Montana Digital Academy, August 2026)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text.

Benefits and Risks of AI in Education (excerpt)

Source: page 4

- **Data collection and monitoring:** Tools that collect extensive student information, including some assessment and monitoring systems, may create privacy and security risks and may generate detailed records of student activity beyond what the original purpose requires.
- **Developmental and ethical concerns:** Student age, maturity, learning goals, and the sensitivity of the activity should inform whether and how an AI tool is used.

Core Principles for AI Integration: Protect Student Data

Source: page 5

4. Protect Student Data: Districts should establish clear processes for reviewing and approving AI tools, minimizing the collection and sharing of student information, and communicating permitted uses. Educators should use locally approved tools and avoid entering protected or sensitive information unless specifically authorized. Local review processes should account for applicable federal and Montana privacy requirements, vendor data practices, security, and potential bias.

Guidance for Educator Use (excerpt)

Source: page 5

Districts should evaluate whether a tool produces reliable results, protects sensitive information, and creates meaningful time savings in local practice.

- **Routine drafting and formatting:** Preparing draft newsletters, general communications, forms, and other materials without entering protected information into an unapproved tool.

Getting Started: Three Immediate Actions (excerpts)

Source: pages 9–10

Moving from principles to daily practice requires local processes that support educators, protect students, and honor Montana's tradition of local control.

AI decisions should not fall solely to an IT department or a single administrator. Because AI affects instruction, data privacy, procurement, accessibility, student conduct, and community expectations, districts should establish a cross-functional team or comparable local process to guide implementation.

- **Technology staff:** Review vendor data practices, security, system compatibility, and technical controls.

The Team's Work: Depending on local governance and assigned authority, the team may review state guidance, recommend local policy, identify AI features already present in district software, support tool review, and help maintain an approved-tool list.

Professional learning should extend beyond tool demonstrations to address AI literacy, instructional purpose, data privacy, accessibility, verification, and appropriate uses for routine work.

- **Communicate approved uses:** Tell students, families, and employees which tools and uses are locally approved and where they can ask questions.
- **Create opportunities for discussion:** Explain why the district is considering AI, what safeguards apply, how student information is protected, and how the district will respond to misuse, including malicious synthetic media and violations of academic integrity expectations.

Policy and Governance (excerpts)

Source: pages 11–12

In the context of AI, tribes maintain jurisdiction over their data and digital materials, possess authority to regulate technology that affects their communities, and determine whether and how AI systems interact with their cultural knowledge. Those developing AI policy must recognize tribal authority and engage in meaningful consultation when state initiatives could affect tribal communities, cultural materials, or data-sovereignty rights.

Legal Considerations and Liability

AI use can create legal and operational responsibilities involving privacy, accessibility, procurement, student conduct, intellectual property, records, and other areas. District leaders should use established review processes and seek qualified advice when a proposed use presents legal or liability questions.

Safety, Privacy, and Responsible Procurement

Source: pages 13–14

Districts need a consistent review process to protect students, meet applicable requirements, and manage local risk. The following guidance applies to every AI tool under consideration, including pilots and free versions.

Part A: Vendor Vetting Checklist

Districts should not deploy an AI tool unless the local review process verifies each of the following criteria:

- **Privacy and data protection:** The tool and its proposed use must comply with the Family Educational Rights and Privacy Act (FERPA) and other applicable federal and Montana student-privacy requirements. Review what information the tool collects, how it is used, whether it is shared, how long it is retained, and how it can be deleted.
- **Security:** The vendor should provide evidence of appropriate security practices, incident-response procedures, and notification terms. Districts should understand which responsibilities belong to the vendor and which remain local.

- **Algorithmic bias:** Districts should require vendors to provide available documentation about how the system has been evaluated for bias.
- **Age, notice, and consent:** The proposed use must comply with the Children's Online Privacy Protection Act (COPPA), vendor age restrictions, and applicable federal, Montana, and local requirements for family notice, consent, and school authorization. Districts should communicate approved tools and their data practices to families, consistent with Getting Started: Three Immediate Actions.
- **Contract and data-privacy terms:** The vendor must sign the Montana Student Data Privacy Agreement or an equivalent agreement approved through the district's established review process.

The Frontier Learning Lab periodically reviews tools for use in Montana schools. Tools that complete this process and meet MTDA and University of Montana procurement standards are available through the MTDA Catalog.

Part B: Deepfake and Synthetic Media Protocol (excerpt)

- **Support for the targeted person:** The district's first response must center the safety, privacy, and support needs of the targeted student or employee. Districts must provide clear reporting pathways designed to reduce retaliation, unnecessary redistribution, and further public exposure.

Part C: Companion and Conversational AI (excerpt)

- **Understand the distinct risks:** Conversational systems may provide inaccurate or harmful guidance, respond inappropriately to disclosures about self-harm or abuse, encourage prolonged emotional reliance, or collect sensitive personal information a student would not otherwise share.
- **Communicate with families:** Districts should include conversational AI in family communication about approved tools, local expectations, and how to raise a concern.

Implementation Roadmap (excerpts)

Source: pages 15–17

- **Review existing policies:** Determine whether academic-integrity, acceptable-use, privacy, grading, records, accessibility, employee-use, and digital-citizenship policies adequately address AI.
- **Use consistent principles:** Connect local policy to privacy, transparency, accountability, universal access, the human in the loop, and academic integrity.
- **Apply the vendor-vetting checklist:** Use the review process in Safety, Privacy, and Responsible Procurement for every tool under consideration. Do not enter personally identifiable information into an unapproved tool.
- **Provide role-specific learning:** Address AI literacy, instructional purpose, privacy, accessibility, verification, and practical strategies relevant to each role.
- **Reflect on Local Experience:** Periodically review educator and student experience, observed instructional value, implementation problems, privacy or safety incidents, and whether continued use remains worthwhile. Districts should avoid collecting new student-level data solely to monitor AI implementation unless a clear local need and appropriate safeguards justify it.

Glossary (excerpt)

Source: page 18

Data privacy: The rights, rules, and practices governing how personal information is collected, used, stored, retained, shared, and deleted.

References (excerpt)

Source: page 20

- Montana Legislature. Montana Student Online Personal Information Protection Act. State of Montana, 2019. Montana Code Annotated § 20-10-1501